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Yale Political Monthly

Volume Five Number Three March 1984

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The Fight for Orwell's Bones

Jacob Weisberg

Just War Theory and the Bombing of Cambodia

Joseph B. Rose

Do We Need an Industrial Policy?

John Rowley

Yale Daily News Revisited

Sarah Oates
Darren Gersh
Jeff Bandman



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who have written for**

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Yale Daily News Revisited

Sarah Oates, Darren Gersh, Jeff Bandman

TO THE EDITOR:

As Editor-in-chief of the institution attacked in the "Stearns, Mead, and the *Yale Daily News*" story by Darren Gersh and Jeff Bandman (YPM 12/83), I feel required to respond to their charges. Their article made broad, unsubstantiated accusations against the *News* as well as the two candidates, Janet Stearns '84 and Slade Mead '84, which need to be clarified.

Gersh and Bandman first denigrate the *News* because "The personalities of the candidates became the focus of interest, and nuances replaced issues as the substance of the campaign," they say. Besides the fact that the Mead campaign consistently stuck to concrete issues—the danger of the Elm Street crossing, the taxation of Yale, and the urban enterprise zone concept—it is patently unfair to reprimand the *News* for a fact which is beyond its control. We covered the race as it was, not as it should have been. If in the course of that coverage we were forced to print accusations made by other candidates, it was part of our legitimate coverage of the news, not an attempt to bias the campaign.

Gersh and Bandman's accusations grow wild when they state that "... a pattern emerges of unintentional blunders, errors of judgement, misunderstandings, poor communications, and admittedly faulty editing—all of which led to a regrettable series of stories and publishing decisions." The problem with this indictment is that the prosecutors never present their case. They never prove that there was "a pattern" of mistakes. Gersh and Bandman use only two examples of what they consider poor judgement—the issue of the Bernie Friedman letter and their accusation that I compromised the *News*.

The series of events which followed the printing as an advertisement of a letter friendly to Mead from Bernie Friedman, former president of the National College Democrats, runs a very complicated route. After seeing the letter printed as an advertisement, Stearns apparently called Friedman to ask him to retract the letter—it was apparently an out-dated letter of friendship. From this conversation, Stearns wrote a letter to the *Yale Daily News*, signing it for Friedman. Editorial editor Dan Froomkin '85 called Friedman to confirm the letter. At that point, Friedman retracted all of his statements. Consequently, the *News* did not print the letter.

It seems that Gersh and Bandman are upset with the *News* because it did not print a scandalous story of these

goings-on. Instead, it printed a minor first-page story reflecting the small and insignificant nature of the incident. Apparently, Gersh and Bandman agree with Scott Bessent '84, a Mead supporter, that the article "could have been much stronger . . . it was not the equivalent to 'Mead expenses reach \$2661.'" I agree, our story on the letter was not as significant as the story on the fact that Slade Mead was spending more money per voter than any candidate—including the mayor—in this city. In other words, each issue received the space and play that its significance merited, and a minor letter by Stearns did not merit a large amount of play in the paper.

Gersh and Bandman's other charge is that I "compromised the *News*' integrity" when I told Mead that the paper would not be running any more editorial page pieces on the election. It was a casual remark off the record designed to reassure Mead that the *News* was not biased against him: throughout the campaign he made accusations along these lines. Unfortunately, I was mistaken because when Monday arrived, the editorial editors ran their two best-written pieces, both supporting Stearns. The editorial editors were merely running what they had. These editors had consistently requested pieces in support of the Republican, but none were submitted until late in the campaign. All of those were run.

It is ridiculous to charge that my private conversation with Mead "compromised the integrity" of the *News*. The Mead campaign had the entire campaign to submit editorials to the *News* but chose the end of that period to do so. My conversation had no relevance on the period before the last four days of the campaign.

Besides these serious flaws of argument, Gersh and Bandman committed several other serious journalistic flaws: they did not include comments from the editorial editors about their policy, or from the news editors who were responsible for the coverage of the campaign. Any responsible journalist knows that it is essential to include as many perspectives as possible of the persons directly involved with an issue. Gersh and Bandman ignored this basic tenet of journalism by not including more comments from the *News* staffers in the article.

The interviews used were with myself and Managing Editor Chris Beall, hastily conducted the night before the article was due. While we both are very involved with the affairs of the daily paper, we do not make the decisions about story assignments: that is the job of the news editors. Nor do we write the stories.

By the end of their article, I was not surprised to see Gersh and Bandman conclude on a weak pot shot: "The age of the candidates aside, the age of the editors of the *News* aside, it was still a dirty business." I can only suppose that Gersh and Bandman consider responsible journalism "dirty."

Sarah A. Oates, '85
Editor-in-Chief
Yale Daily News

DARREN GERSH AND JEFF BANDMAN REPLY:

We feel that much of Sarah Oates' letter is a willful, even crucial misreading of our article. We did not attack the *Yale Daily News*—we simply examined whether or not attacks made by others were well-founded. We took no "pot shots." We did note the sad fact that politics—not journalism—was a dirty business, and that the game of politics replaced substance in the campaign.

The only reason that we wrote our story was that many people questioned *Daily News* coverage of the campaign to the point of suggesting that it was intentionally biased. We examined the articles, photos and ads, talked to most *News* editors, and interviewed members of both aldermanic camps. As our article showed, the *News* did often favor one candidate. This was not because of malicious YDN intentions; rather, it was because of admittedly poor judgements and unintentional errors.

We stand by our story. Sarah Oates *did* compromise the integrity of the *News*. It is not a "private conversation" when the Editor-in-Chief tells a candidate what pieces the newspaper is going to run. As our article points out, the effect of Sarah's remarks to Slade Mead was that the Mead camp did not write articles that they could have written to balance all the pro-Stearns material. The result of what Slade Mead had every reason to believe was a promise—that no pro-Stearns articles would appear on Monday—was that day's unbalanced all-Stearns editorial page.

Oates misses the point of our analysis of *News* coverage of the Friedman letter. It is not that the *News* should have printed a scandalous story, but that the *News* should have printed an accurate story. In our interview with them, Chris Beall and Sarah Oates agreed with us that the headline did not reflect the story. Like the story itself, the headline confused the issues and cast aspersions on Mead in a story about a forged letter from Stearns. The lead paragraph further confused matters, for it did not even contain the thesis of the story: here the *News* failed to observe a basic tenet of journalism.

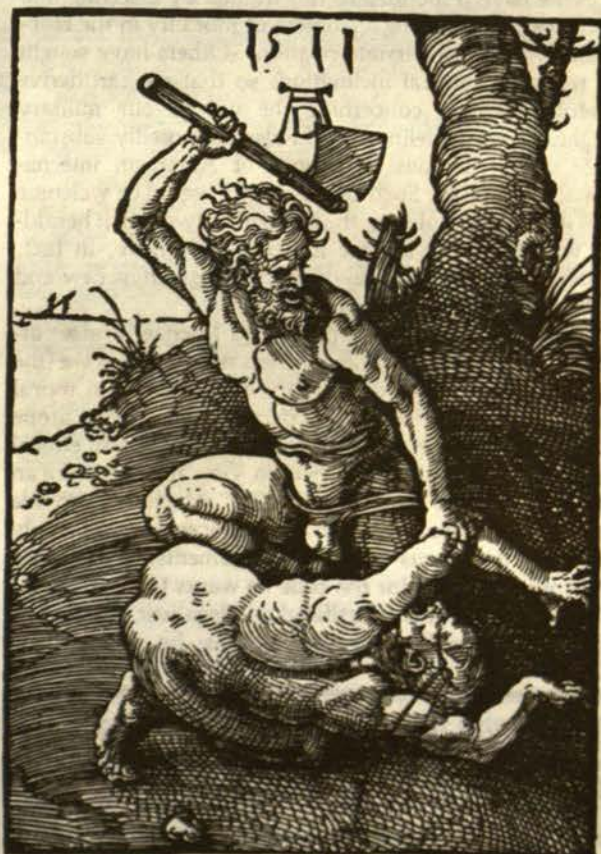
The *News* article on the Friedman letter concludes by accusing Mead of lying and of not answering his phone. Again these trivial "issues" are irrelevant to an article

about a forgery by Stearns. Worse yet, Mead's "lie" was made to protect another inappropriate off-the-record comment made by Oates. She told Mead on Thursday about receiving a forged letter. Mead is accused of lying about whether he found out on Thursday or Saturday. Oates knew perfectly well when he had found out since she had told him. When she edited this story she should have realized the implications of a suggestion in print that Mead was a liar. She, herself, should have taken the responsibility for a minor "lie" designed to protect her indiscretion.

As our article showed, the *News* would not even have printed this story if the Mead camp had not put pressure on it. Our objection is that the poor editing job Oates and Beall admitted they did on the original article by Sarah Lyall only confused the issue of the forgery. The *News*' readers were not allowed a clear presentation of the facts so that they could judge whether or not this matter was "scandalous" or important.

We did give credit where credit was due. The *News* made mistakes, as did the candidates, but we refuted the notion that the *News* was intentionally biased. We applauded their early coverage, and we agreed that they did their jobs in good faith.

We are sorry that Oates perceives our criticisms only as attacks. If the *News* cannot learn from constructive criticism, it will inevitably make the same mistake again.



Just War Theory and the Bombing of Cambodia

Joseph B. Rose

AFTER World War II the United States emerged as the dominant power in, and protector of, a liberal world order. New global responsibilities posed a formidable challenge to American idealism: could the U.S. use its military power effectively in the imperfect and often brutal realm of international affairs without succumbing to *realpolitik* and ignoring ethical concerns? At first there was a consensus that combatting Communist expansionism was both strategically prudent and morally justifiable. But the Vietnam war shattered this consensus and left deep divisions within the American foreign policy community. Many felt that an aggressive and imperialist United States had lost its character in the jungles of Vietnam, Laos, and Cambodia; they directed charges of criminality and barbarity at American leaders. The moral ambiguity of the Vietnam war left much of the nation's foreign policy establishment paralyzed from ethical insecurity about using American military might.

Some have responded to this trauma by asserting that Americans are chasing a chimera of morality in the Hobbesian world of interstate relations. Others have sought to refine our ethical inclinations so that we can derive useful guidelines concerning the use of our military might. These guidelines would also supposedly substantiate many previous allegations of American international immorality. Such ethical clarity would be welcome and it is worth exploring the thought of two much heralded writers on the subject to see if they have, in fact, resolved persistent ethical dilemmas or given us new and valuable ethical rules of thumb.

In his book *Just and Unjust Wars* Michael Walzer attempts, "... to defend the business of arguing as we [the anti-war movement] did and most people do, in moral terms." Although his work is partly an attempt to atone for the rhetorical excess of those who opposed on ethical grounds American involvement in Vietnam, it is more an effort to devise a "practical morality" which will provide guidance to those faced with hard choices. He wants only direction and focus from past arguments. Walzer sets rigorous standards for the code he wants to develop. He does not settle for the "artificial and legalistic" borders of the Hague and Geneva Conventions; he wants to go

beyond explicitly agreed upon laws of conduct and reveal instead more profound notions of right and wrong. Walzer tries to glean objective and firm laws of conduct from our vague common sensibilities and then apply these laws to specific actions.

In contrast to Walzer's philosophical approach, Stanley Hoffmann brings the perspective of a sophisticated student of international relations to his book *Duties Beyond Borders*. He sees politics as the art of performance and allows some disregard of the ethical philosopher in exchange for more useful and applicable moral concepts. He sums up this view rather succinctly: "Applied ethics is not the province of the ethical philosopher, it is the domain of the student of the given field of application—as long as this student cares about moral issues."¹ Whereas Walzer proceeds from the "ought" to the "is," Hoffmann starts with the "is" and gropes towards the "ought."

Both Walzer and Hoffmann dwell only briefly on what might be called classical just war theory. Since Walzer's concern is with developing an ethical code from the present character of moral debate, he generally avoids considering ethical history. Hoffmann, however, confronts the legacy of traditional just war theory and dismisses it as largely irrelevant to modern international conflict. According to J.B. Hare and Carey B. Joynt:

The simplest statements of the just war theory give three criteria for a justified war: it must be waged by a prince invested with legal authority, against an enemy deserving of punishment, and with the intention that good should be promoted and evil removed.²

Theologians and philosophers expanded upon these principles to provide more specific conditions for just war. A distilled list of these includes two sorts of moral constraints, those dealing with the reasons for initial resort to force (*jus ad bellum*) and those dealing with the actual means employed (*jus ad bello*). The first type of restraint required that war be fought either for defensive purposes or to redress an injustice of serious concern to mankind: the use of violence was also permitted only as a last resort. Employable means had to have a reasonable chance of success, be proportional to the just ends being sought, and had to respect noncombatant immunity. This last constraint has often been modified to include a doctrine of "double effect" which would permit ordinarily banned means only if their ultimate effect were moral and if their evil effects were unintended. Hoffman criticizes this sort of rulemaking because it allows either too

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much discretion if the rules are interpreted broadly or too little if applied rigorously.

The doctrine was elaborated for . . . circumstances which are no longer with us; . . . for a world in which the Princes were sufficiently Christian to have "the right intention" required or in which the Church was sufficiently strong in authority and power to define and interpret morality—not for a world in which the right intention becomes a matter of self-righteous and self-serving self interpretation.³

Hoffman rightly perceives that just war doctrine loosely interpreted would, rather than constrain a superpower's resort to force, give moral approval to any decision to use military power; ". . . (just war doctrine) could be an extraordinary source of conflict generalization." Defensive measures could be expanded to include all sorts of preemptive or preventive actions and the failure to specify suitable provocation would allow superpower military responses to even minor actions like the nationalization of businesses. Hoffman also points out that the clause that sanctions intervention in cases of "general concern" can be used to justify both the Brezhnev doctrine of supporting Communist expansion and the American doctrines aimed at suppressing it.



Alternatively, if one focuses strictly on the proportionality of means, the immunity of non-combatants, and the demand for a reasonable chance of success, then the horror of modern warfare would seem to prohibit any use of the highly destructive technology in current arsenals. Ultimately, the destructive power of nuclear weapons undermines many arguments about proportionality. But even at lower levels of conflict, modern weapons seem to confound calculations of appropriate means and double effect. Hoffmann offers Vietnam, where some argue that we destroyed a nation in trying to save it, or the Soviets in Afghanistan where their barbarous actions mock even their fig-leaf self justification. The means that have a reasonable chance of success seem increasingly to have an effect grossly disproportionate to the ends at stake.

CONVENTIONAL just war theory poses a problem for those who would derive precepts for the use of military force. The power of modern weapons and ideology and the complexity of cold war superpower relations (with nuclear deterrence, third world proxies, anti-guerilla warfare, etc.) seem to yield great ambiguity if not outright paradox from attempts to fit current dil-

emmas into centuries-old traditions. Hoffmann attacks those (especially the Vatican II council) that simply accept this ambiguity without questioning the tradition. While condemning genocide, indiscriminate destruction, and acknowledging the "lawful right of self defense," the church has usually avoided resolving the most troubling issues. Hoffmann implies that such tolerance of ambiguity represents an abnegation of moral authority. Instead, he argues that: "We must try to find some guidelines that address themselves to the moral issues of modern war, and thus go beyond either strategic engineering or legal exigesis."⁴

At this stage Hoffmann relies for a moment on Michael Walzer's moral reasoning. Walzer begins by assuming that war with all its accompanying horrors is the result of a crime he defines as "aggression." Aggression is the infringement of one state's territorial integrity or political sovereignty by another in such a way that it forces citizens to risk their lives in order to protect their rights. Forceful resistance to aggression is always justified whether or not it is advisable on prudential grounds. Walzer asserts that the sanctity of a state's borders and sovereignty stems from the collective rights of the individual citizens. Since it is only within such political communities that one can form a political association and protect his individual rights Walzer makes a presumption in favor of a state's legitimacy and rights, even if its domestic order is less than ideal. Just as individuals within a society have rights of property and self defense, so too does a state have the right of territorial integrity and the right to resist by force its infringement (as long as there is some connection between a state's territory and its national survival and independence).

Proceeding from the claim that ". . . states actually do possess rights more or less as individuals do," Walzer draws out this "domestic analogy" to build a foundation for a moral theory of international relations which he calls "the legalist paradigm." Whereas individuals within a polity can look to the police for the redress of injustice and the maintenance of order, no such authority exists in international society. Each state must protect its own rights and also those of other states: "the rights of member states must be vindicated for it is only by virtue of those rights that there is a society at all."^{4a} Thus, according to the legalist paradigm, the use of force is only justified in response to aggression, either in self defense against aggression (or its imminent threat) or in a law enforcement action to assist a victim and punish the aggressor.

IN using the legalist paradigm as the foundation of his just war theory, Walzer encourages what he calls an *a priori* respect for state boundaries, "the only boundaries communities ever have." But Walzer also admits that in some cases too much respect for those boundaries can undermine the paradigm's purposes: the guarantee of a state's and thus its individuals' rights. In addition to a strict clause which would allow preemptive attack



against only the most extreme cases of threatened aggression, he offers three revisions which permit the violation of another state's frontiers in the absence of overt aggression. Walzer is suspicious of such exceptions since he is well aware of the inclination of powerful states to invade weaker ones on the flimsiest of pretexts. He argues that any violation of the paradigm automatically places a heavy burden of proof on the state that claims exemption.

The first exception for non-defensive intervention might be termed "counterimperialism." According to the clause, a state may come to the assistance of a movement for "national liberation" within larger borders if the liberation movement has already passed a Millian test of self help by carrying on a large scale prolonged struggle for independence. Of course, such assistance may be inadvisable on prudential grounds, especially if the intervening state acts only to uphold communal autonomy and not to pursue a strategic advantage. Cases of such generous and almost altruistic assistance are, Walzer concedes, very rare.

A second type of non-defensive intervention which Walzer allows is "counterintervention." If one outside power has violated the boundaries of a state that is involved in a civil war (even at the request of one of the participating factions) then a second power may come to

the assistance of the unaided faction. Ideally, internal conflicts would be settled internally, but "As soon as one outside power violates the norms of neutrality and non-intervention . . . the way is open for other powers to do so."⁵ Walzer makes it clear, however, that counterintervention is simply a balancing act to restore the conflict to a contest between internal forces.

The final type of non-defensive intervention which Walzer permits is the simple rescue mission for an entire population. When a government is so brutal to its own population that its enslavements or massacres "shock the moral conscience of mankind" then another state is justified in intervening as long as its goal is only to end the suffering and restore a more normal political community and not to inflict its own rule on the already tormented population.

In the historical examples he uses to illustrate his principles Walzer is chary about justifying military action and his usual verdict is that a state has violated the paradigm or abused an exception. Not surprisingly, he finds U.S. intervention in Vietnam to have been wrong because our Vietnamese allies failed to prove their legitimacy through a test of self help and this led us to turn a distant civil conflict into: ". . . an American war, fought for American purposes, in someone else's country."⁶

STANLEY Hoffmann is happy with Walzer's legalist paradigm: "Since I share [Walzer's] moral theory and agree with many of his precepts, much of this will . . . read like a gloss on his work." Still Hoffmann's perspective of "uplifted politics" differs in one important way from Walzer's moral reasoning. While Walzer seeks impartial and almost *a priori* rules of international conduct, Hoffmann considers himself more of a "consequentialist." Hoffmann points out that Walzer's impartial granting of permission for counterinterventions in a civil war could conceivably license counterintervention on behalf of an oppressive government and thus stifle the legitimate forces for progress. Walzer acknowledges this, but asserts that if his theory of aggression is to have any force at all it must be applied scrupulously and impartially. Hoffmann is more concerned with the outcomes of particular cases and he argues that while the legalist paradigm is generally useful, it must be modified by an appeal to the likely consequences of any action or inaction. He does admit that a healthy international order is a consequence worth considering as well and that this leads to a restrictive bias in favor of the paradigm. Nonetheless, he maintains that:

Walzer's "neutral" rule is a bit too mechanical for comfort . . . one must conclude that moral politics are contextual . . . a decisive judgement as to the morality of the counterintervention is inseparable from a weighing of consequences . . . Once again, we find the need to go beyond intentions to a consideration of practical realities and likely effects.⁸

Hoffmann illustrates the problem with the Vietnam example where an interpretation (different from his and Walzer's) which viewed the U.S. as counterintervening against North Vietnamese interference in South Vietnam would morally justify American involvement. Hoffman pleads for a "morality of self restraint" in which the prescriptions of the legalist paradigm are coupled with the consequentialist calculations of the sophisticated student of international relations. He proffers this as an approach useful to the statesman aspiring to ethical behavior and the morally aware citizen searching for ethical clarity with which to evaluate the actions of his leaders.

If we are to evaluate the usefulness of Walzer's and Hoffmann's moral arguments, we should apply their guidelines to actual historical cases to see whether heretofore ambiguous moral questions can now be easily resolved. The fundamental criterion for success that they both set for themselves was, after all, that their precepts would constitute an "applied ethics" which could guide statesmen and assign blame. We should judge their success according to how we are helped in the difficult cases, not the easy ones. Although we might be comforted to know that both Walzer and Hoffmann have sound moral arguments that would approve of the allied decision to resist Hitler's attempt to conquer Europe, or would condemn Mussolini's invasion of Ethiopia, we would probably not consider such moral justifications to be terribly valuable for those cases. When a state's use of force so egregiously violates our common values, we hardly need Walzer or Hoffmann to explain why we should feel justified in resisting aggression. Such judgments are easily handled at what Hare and Joynt describe as "the intuitive level of moral reasoning." We turn, instead, to ethical philosophers and specialists in

foreign relations when our moral intuitions are confounded by the complexities and competing claims of the more subtle conflicts in the international realm. At the outset I referred to bitter feuds over international morality which shattered American domestic consensus and instilled ethical insecurity in much of the nation's foreign policy establishment. Applying Walzer's and Hoffmann's guidelines to one of the thorniest and perhaps bitterest of these feuds, the one over the war in Cambodia, indicates that we are still left with considerably less moral clarity than we might have hoped for in Walzer's case or expected from Hoffmann, given the confidence with which Hoffmann asserts others' immorality in ambiguous cases.

CAMBODIA was a small peaceful country on Vietnam's western border which was eventually engulfed in the Vietnam war and then suffered genocide at the hands of its own government. Debate still rages about who was responsible for neutral Cambodia's being dragged into the war, even among those who agree that U.S. involvement in Indochina was a huge prudential mistake. Who is to blame for the ravages of war and the millions of subsequent deaths inflicted on Cambodia by the butchers who came to power is a question with serious implications for U.S. policy. Strategies with such consequences will not be tolerated by the American people. The American character rightly prohibits ignoring this disaster: responsibility for Cambodia's suffering would be a moral indictment unanswerable by appeals to temporary strategic necessity. Some, including Stanley Hoffmann, have charged that the United States (and particularly Nixon and Kissinger) are guilty of the crime of bringing the war and its subsequent horrors to Cambodia. The seriousness of this charge, the confidence with which it is made, and its implications for future U.S. action warrant paying close attention to the arguments, both moral and historical, of each side and then seeing whether the moral frameworks developed by Walzer and Hoffmann are helpful in resolving the matter.

Cambodia had been ruled since its independence from the French in 1953 by an artful and devious ruler, Prince Norodom Sihanouk, who had managed to insulate his country somewhat from the neighboring war. According to Henry Kissinger:

In leading his country Sihanouk skillfully walked a tightrope between East and West in global politics, between the Soviet Union and China in the emerging Communist schism, between the opposing sides in the battle over Vietnam, and between right and left in his own country. Voluble, erratic, fun-loving — "mercurial" is the word usually used — he dexterously kept his country a haven of peace amid the bloody wars that ravaged the rest of Indochina. Finally — suddenly — in 1970, the nimble tightrope walker slipped and fell, and thus doomed his people to a hell far worse than even their neighbors had endured.⁹

The crux of the debate about moral responsibility is whether the U.S. was responsible for Sihanouk's slipping from power. Hoffmann argues that the United States' violation of Cambodian neutrality undermined Sihanouk; Kissinger, on the other hand, claims it was the North Vietnamese that brought about Sihanouk's

downfall. Before examining the respective arguments we should look at the skeletal history of the conflict which both sides admit to be true.

In 1965 the North Vietnamese began to build a network of military bases in sparsely populated areas of Cambodia along the South Vietnamese border. For the next four years North Vietnam and Viet Cong troops stationed in these bases would cross the border into South Vietnam and attack American and South Vietnamese forces. The North Vietnamese would then retreat back across the border into Cambodia and escape retaliation because American troops respected Cambodian "neutrality." Thus the North Vietnamese bases in Cambodia came to be called "sanctuaries." While Sihanouk continued to proclaim Cambodian neutrality, he tolerated a major North Vietnamese military presence on his soil and also allowed the port of Sihanoukville to be used as a major conduit for North Vietnamese supplies. He had, admittedly, little discretion about this since he kept his own army small to prevent a military coup and the Vietnamese had tens of thousands of troops stationed on his soil. Furthermore, his Chinese benefactors pressured him to provide as much logistical assistance as possible to the Vietnamese.

NEVERTHELESS, by 1969 the North Vietnamese presence in Cambodia's border areas proved to be a domestic political liability for Sihanouk. In March 1969 President Nixon responded to North Vietnamese shelling of South Vietnamese cities by ordering limited air strikes against the sanctuaries. This began the series of secret MENU bombings: B-59 raids directed at carefully specified North Vietnamese targets in Cambodia, all within five miles of the border. These bombings continued until May 1970 when conditions had changed substantially and American bombing raids were no longer conducted covertly.

In March of 1970, when Sihanouk was in France on a long vacation, the domestic political situation in Cambodia deteriorated: 20,000 Cambodians rioted and sacked the North Vietnamese and Viet Cong embassies, the deputy Prime Minister suspended a trade agreement with the Viet Cong, and the Cambodian Foreign Ministry informed the North Vietnamese they had two days to evacuate all Vietnamese Communist troops from Cambodian soil. Sihanouk imprudently decided not to return to Cambodia at once and instead proceeded to Moscow "to ask them to curb the activities of the Viet Cong and Viet Minh in my country." On his way to Moscow's airport, for a trip to Peking, Sihanouk was informed by the Russians that he had been deposed by his own government. Lon Nol, Sihanouk's ardently pro-American prime minister (and former defense minister) was now Cambodia's chief of state. In Peking, Sihanouk was outraged by his overthrow and humiliation and he declared a personal war on the new Cambodian regime and vowed to reestablish his rule. Possibly at the behest of his Chinese hosts he:

... established a National United Front of Kampuchea (FUNK), whose task was to "liberate our motherland." Sihanouk called upon all those who had the stomach "to engage in guerilla warfare in the

jungles against our enemies." The North Vietnamese, the Viet Cong, and the Pathet Lao immediately pledged their support to the new Front, and in Hanoi a statement of support was issued in the name of the Khmer Rouge.¹⁰

In a desperate attempt to return to power, Sihanouk had thrown his lot in with the North Vietnamese and the Khmer Rouge, a tiny band of fanatical Cambodian Communists who waged guerilla war in the jungles and whose leaders Sihanouk had earlier condemned to death *in absentia*.

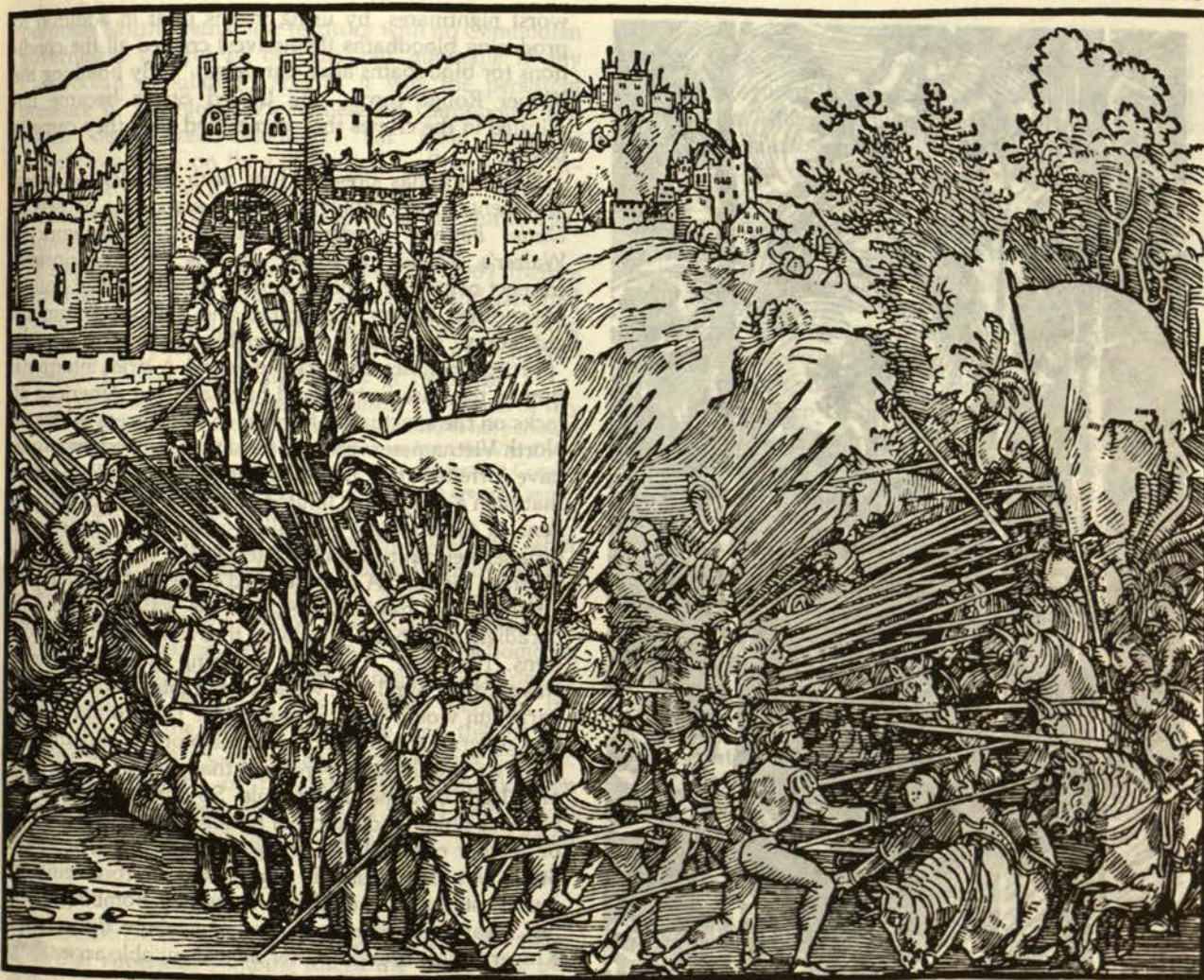
The next month (April 1970) the North Vietnamese launched an attack on the new Cambodian government from their bases along the border. According to Peter Rodman (an assistant to Kissinger):

The North Vietnamese responded [to the Cambodian demand that they leave the country] with the humanitarianism for which they are renowned: they invaded the rest of Cambodia. Sweeping out of their bases along the border, they attacked and overran Cambodian military outposts, Cambodian towns, Cambodian roads, and Cambodian river communications all over the eastern half of the country, linking their scattered sanctuaries into one common base area aimed at South Vietnam and advancing westward on Phnom Penh [Cambodia's capital] . . .¹¹

Following this escalation, combined U.S. and South Vietnamese forces staged a two month invasion of the sanctuary areas in order to disrupt North Vietnamese operations in South Vietnam and permit increased Vietnamization of the war and further American troop withdrawals. American domestic opposition to any U.S. actions in Cambodia (fueled in part by Nixon's inflated rhetoric about the incursion's purposes) encouraged the U.S. to withdraw from Cambodian territory rapidly, after limited but substantial gains.

AFTER the U.S. withdrawal from the border areas in the summer of 1970 the war between the Cambodian government and their North Vietnamese and Khmer Rouge enemies continued for another five years. Congressional restrictions and fear of adverse public opinion prevented the administration from providing military advisors and most other kinds of logistical support to the beleaguered Cambodian army. Instead the U.S. bombarded troops to support the Lon Nol government until 1973 when Congress banned that as well. After 1973 the Cambodians relied heavily on firepower bought with American military assistance funds. When Congress cut these funds, the tottering Cambodian army lost its crutch of ample supplies of ammunition. The Khmer Rouge triumphed. Their subsequent rule turned out to be one of the most ghastly interludes in history. They emptied Cambodia's cities, dissolved all forms of association including families and brutally collectivized agriculture. They mercilessly murdered the country's entire middle class and anyone associated with the previous governments. Estimates of the number killed under Khmer Rouge rule range from one to three million, almost one half of Cambodia's population.

Stanley Hoffmann builds his argument on William Shawcross' elaborate proposition that the American bombing of the sanctuaries in 1969 forced the North Vietnamese deeper into Cambodian territory, thus creating



political difficulties for Sihanouk which led to his removal and brought the Khmer Rouge to power. Shawcross' book, *Sideshow: Kissinger, Nixon, and the Destruction of Cambodia*, relentlessly pursues this line:

... More and more reports of serious clashes between the Communists and Cambodian villagers and troops reached Phnom Penh. The effect was inevitable ... Sihanouk's balance of right against left became more precarious. The bombing was destabilizing him.¹²

In an approving review of Shawcross' work in *The New York Review of Books*, "The Crime of Cambodia," Hoffmann supports this interpretation and levels several separate charges at American actions.

His first charge is that the U.S. violated the fragile neutrality of Cambodia with our bombing of the sanctuaries. Hoffmann dismisses the sanctuaries as merely, "... the price [Sihanouk] had to pay to his troublesome neighbors in exchange for preserving Cambodia from the conflict."¹³ The 40,000 North Vietnamese troops launching forays into South Vietnam from bases in Cambodia were only a small "dent" in Cambodia's *de facto* neutrality. Thus, American attempts to destroy the sanctuaries indicated that "we had the wrong hierarchy of ends"; we wrongly valued a fleeting strategic advantage in the Vietnam war over the rights of the Cambodian people to their neutrality.

Hoffmann's second charge is that after our violation of Cambodia's neutrality and destabilization of Sihanouk, we compounded our crime by propping up the Lon Nol government with arms and money instead of forcing the Cambodians (or allowing the North Vietnamese) to bring Sihanouk back to power. According to Hoffmann, the only realistic alternative to Sihanouk was the Khmer Rouge. When the U.S. helped the Lon Nol regime, it obstructed Sihanouk's return and thus left no alternative to eventual Khmer Rouge rule. By pursuing an unrealistic policy of support for Lon Nol, we arrogantly interfered with and distorted Cambodian politics.

The third charge is that the means the United States employed in violating Cambodia's neutrality and then propping up Lon Nol (invasion and bombing of the sanctuaries and then the bombing of Communist troops in other areas of Cambodia) aggravated that nation's eventual traumas. Not only did our attacks on the sanctuaries disperse the Vietnamese and Khmer Rouge into the rest of Cambodia, the incursions and our later bombings also created thousands of refugees who crowded into Phnom Penh, thus increasing the disastrous effects of the Khmer Rouge's brutal emptying of the cities. According to Hoffmann: "We could prolong the agony, and fulfill our own



worst nightmares, by using means (that in addition to producing bloodbaths themselves) created all the conditions for bloodbaths after our defeat."¹⁴ By bombing the Khmer Rouge forces, the United States became implicated in the crimes they committed after they came to power.

Hoffmann has presented us with an elegant moral argument which conforms to the standards he sets in *Duties Beyond Borders*. He uses the framework of Walzer's legalist paradigm for his ethical principles (respect neutrality, don't interfere in the internal politics of another nation, recognize and uphold communal autonomy) but he is also flexible enough to consider "practical realities and likely effects." A strict interpretation of the paradigm would have allowed American attacks on the sanctuaries because in those areas where the North Vietnamese were stationed the Cambodians would have forfeited their neutral rights. Yet Hoffmann insists that such a view is too limited: American efforts to fix the dent in Cambodia's neutrality could only destroy the broader neutrality which protected the Cambodian people from the war. A sophisticated student of international affairs should have realized that the way to uphold the paradigm's purposes would be to overlook minor violations. Therefore, American bombing of the sanctuaries was a crime. Similarly, while a strict interpretation of the paradigm would have permitted the U.S. to aid the Lon Nol government in response to the North Vietnamese attack, we should have perceived that such a course could only lead to Khmer Rouge rule. So our support for Lon Nol was not a vindication of national self determination, but rather criminal and arrogant meddling. The United States was also criminally negligent in not foreseeing that our resistance to the Khmer Rouge by bombing would just create urban refugees and exaggerate the effect of Khmer Rouge brutality after their inevitable accession to power.

WE would, however, be more certain in these judgments of criminal U.S. conduct if there were not heated debate about whether Hoffmann and Shawcross have correctly interpreted Cambodian history. In fact, after considering the counter-arguments of Henry Kissinger and his supporters, we find that we are still left with much ambiguity about the ethical nature of U.S. conduct in that hapless nation. Kissinger's determined rebuttal to the charges seems to weaken, if not overwhelm, our confidence in alleging immorality in the American actions.

In the first volume of his memoirs, *White House Years*, Kissinger discusses Cambodia at great length, offering information and justifications that appear to refute Shawcross. In a later article in *The American Spectator*, "Sideshow: Kissinger, Shawcross, and the Responsibility for Cambodia," Kissinger's assistant goes so far as to say that Shawcross has willfully and maliciously distorted history in order to blame the United States for events over which it had no control. In response to the charge that it was American bombing which violated Cambodian neutrality and destabilized Sihanouk, Kissinger argues a) that the strip of sanctuaries was for all practical

purposes North Vietnamese territory with no Cambodian government control or officials and miniscule if any Cambodian population; and b) it was the persistent presence of the North Vietnamese on Cambodian soil which destabilized Sihanouk. Far from decrying American attacks on the sanctuaries the Prince had virtually asked for them and then not objected to their continuation because they counterbalanced the North Vietnamese strength.

Kissinger and Rodman claim that by 1969 (before American bombing), Sihanouk, a master politician, had sensed that the North Vietnamese presence was unsettling his precarious political perch. He had told American Ambassador Chester Bowles in January of 1968 that:

We don't want any Vietnamese in Cambodia . . . We will be very glad if you solve our problem. We are not opposed to hot pursuit in uninhabited areas. You would be liberating us from the Viet Cong. For me only Cambodia counts. I want you to force the Viet Cong to leave Cambodia. In unpopulated areas, where there are not Cambodians—such precise cases I would shut my eyes.¹⁵

Indeed this is exactly what he did when a year later (after substantial provocation by the North Vietnamese) the U.S. began bombing the sanctuaries, always taking great care to avoid the few Cambodian-occupied areas among the many sanctuaries. Several months after the bombing had started, Sihanouk replied to journalists' inquiries by noting that the bombing was an affair between the Americans and the North Vietnamese, and that he had not heard of even a Cambodian buffalo's being harmed. After four months of the bombing Sihanouk even "warmly invited President Nixon to visit Cambodia to mark the improvement of U.S. — Cambodian relations."¹⁶

ACCORDING to Kissinger and Rodman, the claim that American bombing forced the Vietnamese out of their sanctuaries and into the rest of Cambodia is totally specious. Rodman devotes great effort to demonstrating that Shawcross fabricated any significant movement of the Vietnamese out of the sanctuaries in response to American bombing. Shawcross has replied that even movement of a few miles was enough to upset fragile Cambodian politics. Suffice it to say that such a theory of causation was not held by Sihanouk who clearly had the most to lose from any increased North Vietnamese visibility as a result of American bombings. He published an article a few months before his downfall that "in all honesty and objectivity" praised the U.S. for creating a regional balance of power that offered Cambodia a chance to resist "the new Imperialism of Asiatic Communism." Kissinger and Rodman consider it unlikely that Shawcross' judgment of Cambodian politics can surpass that of Sihanouk who had managed to stay in power for a quarter century because of his uncanny sensitivity to Cambodian politics. Sihanouk understood his troubles had nothing to do with the American bombing. Kissinger notes:

The precipitating issue was the Communist sanctuaries from which the North Vietnamese had tormented our forces. These increasingly aroused the nationalist outrage of the Cambodians, who over the centuries have seen successive Vietnamese rulers colonize their ancestral lands.¹⁷

A decade after his fall Sihanouk confirmed this himself.

Kissinger then addresses the charge that we then ruined Cambodia's future by propping up the successor Lon Nol government when returning Sihanouk to power would have been Cambodia's only hope. Kissinger presents documentation that before the United States had taken any action to "prop up" the Lon Nol government, Sihanouk had out of pique and in desperation "irrevocably joined forces with the Communists." Within three weeks of Sihanouk's ouster, Kissinger maintains, there was no difference between Sihanouk and the Khmer Rouge. The United States was completely bewildered: the coup had caught us by surprise at a time when our relations with Sihanouk were improving; we searched in vain for a way to keep Cambodia out of the war. Kissinger proposed guaranteeing the nation's neutrality to the North Vietnamese negotiator Le Duc Tho but he refused to discuss it. The Vietnamese attacked; the war had started. At that point there were only two options: support the Lon Nol government (which had strong popular support) or allow the North Vietnamese and Khmer Rouge to conquer Cambodia unopposed. The third option which Hoffmann and Shawcross continually refer to (reinstate Sihanouk as the leader of some sort of coalition government) in Kissinger's opinion just didn't exist.

Hoffmann's third charge was that after the war started the United States chose means to combat the Khmer Rouge that only exacerbated their rule. Rodman explains that the U.S. was forced to use its airpower to hold the Khmer Rouge at bay because Congressional restrictions specifically prohibited any measures that would have allowed us to enhance the intrinsic fighting ability of the hurriedly assembled Cambodian army. In Kissinger's words: ". . . the weaker the Cambodian forces were, in large part as a result of the limits on our aid, the more they had to rely on our planes as their only strategic reserve. Not the least irony was that the critics produced what they professed to abhor: increasing reliance on air power."¹⁸ Shawcross alleges that Cambodia was bombed constantly simply because the Paris Peace treaty with the Vietnamese in 1973 freed all the B-52's for action in Cambodia. Rather, Nixon and Kissinger were offering the Cambodian people the only support allowed. Congress then demanded a bombing halt and ultimately cut the lifeline of funding support, presenting the Khmer Rouge with the opportunity to seize power. The United States may well have lacked the will or stamina to get involved in another conflict in Indochina, but Rodman contends that: "By no stretch of moral logic can the crimes of mass-murderers be ascribed to those who struggled to prevent their coming to power."¹⁹

KISSINGER concludes that American actions in regard to Cambodia were not at all morally questionable. Our actions had nothing whatsoever to do with the horrors that befell Cambodia. Aside from limited support to Lon Nol that was not decisive, we operated only in a border area that was virtually North Vietnamese territory. Our incursions were only a tactical decision to stop attacks

on our troops in South Vietnam. We were successful and facilitated Vietnamization and ultimately, American withdrawal from Indochina.

Hoffmann's moral argument loses much of its appeal when confronted with Kissinger's response. At best, Hoffmann provided us with an apparently plausible moral analysis of a tragic episode of international conflict, but at worst he has unjustly charged the United States with immoral conduct and accused American statesmen of being criminals when in fact they were innocent. Careful study of the arguments presented by both sides seems to push us toward the latter conclusion. The fact that Hoffmann's own "weighing of the consequences and consideration of practical realities and likely effects" may have led us seriously astray has profound implications for our opinion of his approach to ethical judgement. If in this case Hoffmann himself has wound up misinterpreting facts and falsely accusing others of gross immoral conduct, what does this say about the confidence we should have in moral pronouncements he makes about other ambiguous situations? At first, Hoffmann's consequentialist qualifications of the legalist paradigm's imperatives seemed reasonable. Now, however, we are confounded in moral argument when confronted by more than one plausible consequentialist analysis. In moving away from the strict guidance of the legalist paradigm we seem to have forfeited the moral clarity we originally sought. Shawcross' devious argument about responsibility for the nightmare of Cambodia has exposed a flaw in Hoffman's tempering of the paradigm with consequentialist exceptions: absent near-perfect wisdom, one can easily succumb to sophistic consequential arguments. Instead of emerging from this case study confident about useful guidelines for ethical evaluation of difficult cases, we are more inclined to be suspicious of moral assertions.

WALZER'S more rigid guidelines seem less vulnerable to distortion than those of Hoffmann. The impartial prescriptions of the legalist paradigm seem to have disciplined our primitive ethical intuitions into a coherent moral framework. Walzer's argument that by respecting states' borders we create a stable world order which can best protect everyone's rights appeals to our liberal democratic inclinations. The strict rules Walzer then derives from this view allow us to sort our conflicting intuitions and to categorize and condemn actions that we always knew were wrong without being fully able to explain why. The paradigm is also useful in exonerating American behavior in Cambodia where our actions were justifiable under the clauses of counterintervention and support to a legitimate government facing external aggression. Still, Hoffmann's original criticism of the paradigm's leading us to overly simplistic categorical responses to complex international situations remains troubling. Hoffmann's appeal to consequentialist modifications of the paradigm was an acknowledgement of the difficulty that we often encounter in fitting a real-world crisis into the formal categories of the legalist paradigm. In the Cambodian case we seem able to do this without too much difficulty, but debate about the

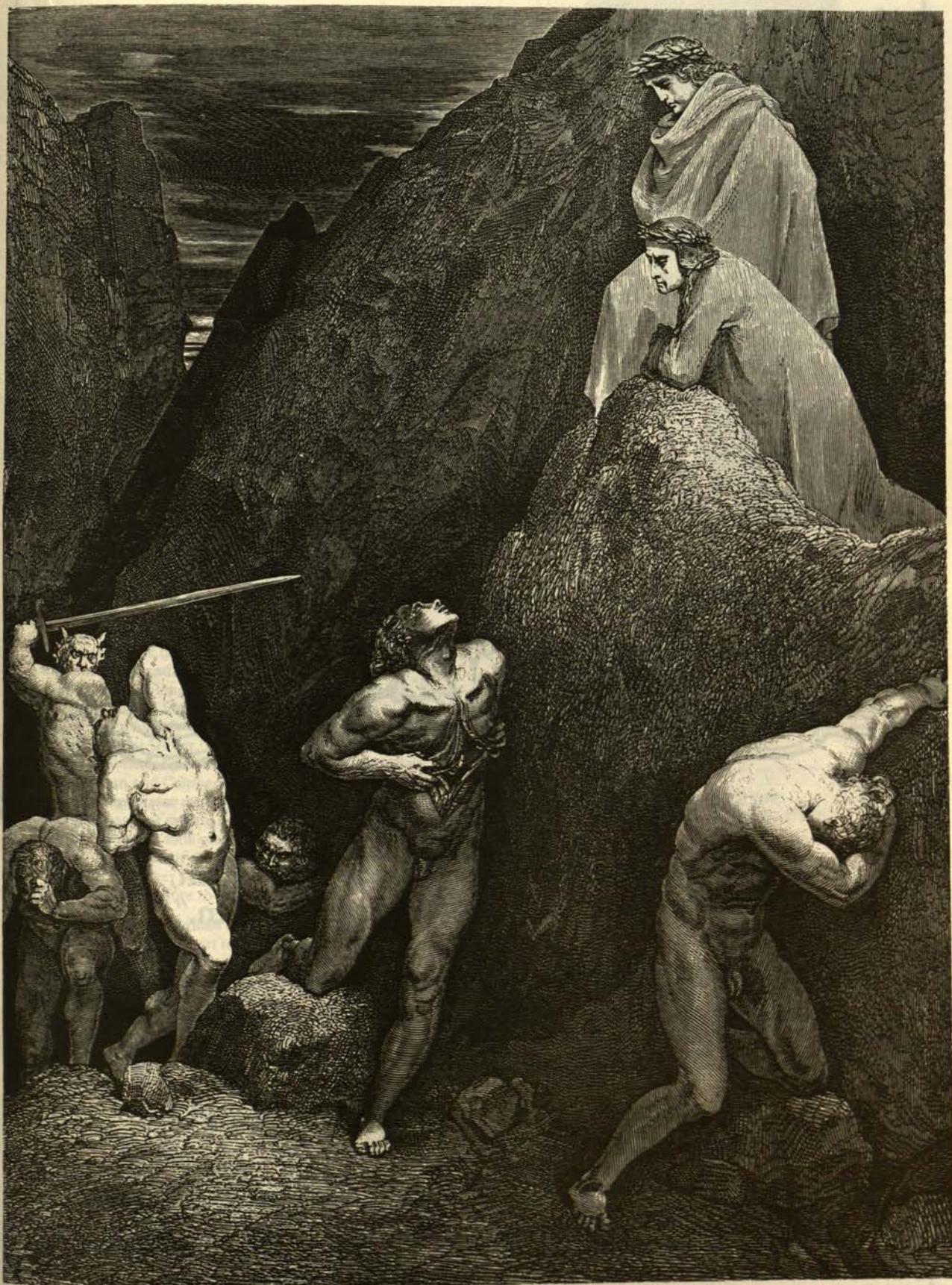
morality of U.S. intervention in Vietnam, as Hoffmann suggests, still focuses on whether the U.S. was unjustly propping up a weak and unpopular faction in a civil war or was nobly aiding a victim of armed external aggression. The international arena is rife with such uncertainty and Hoffmann claims that relying on the legalist paradigm alone will not help clarify matters. As a rule of thumb the paradigm is useful but in tough cases we cannot substitute automatic imperatives for careful judgment. We have seen the dangers of putting too much faith in such judgment and we are still left with gaps in our ability to assess the morality of our international conduct.

Walzer's response would be that when in doubt we should favor non-intervention in any instance since a nation's actions are most likely to be self-serving and insensitive to local yearnings; appeals to the paradigm for justification are generally insincere. To be sure, we will often arrive at such verdicts, but as a general principle this does not constitute persuasive moral argument: it merely reflects our skepticism of a nation's capacity to use military power ethically. But according to Walzer's legalist paradigm it is a moral imperative to assist a nation facing armed external aggression: "The rights of member states must be vindicated, for it is only by virtue of those rights that there is a society at all."²⁰ Failure to act can be just as devastating to world order and human rights in some cases as the casual resort to force is in others. Returning to the case of Cambodia, was the U.S. perhaps negligent in turning its back on the plight of the Cambodian people who struggled against massive North Vietnamese forces and the murderous Khmer Rouge? Sirik Matak, deputy prime minister to both Sihanouk and then Lon Nol, captured poignantly our moral predicament in a letter to the U.S. Ambassador in which he declined a last minute offer of evacuation in order to escape the advancing Khmer Rouge:

I never believed for a moment that you would have this sentiment of abandoning a people which has chosen liberty. You have refused us your protection and there is nothing we can do about it . . . We have only committed this mistake of believing in you, the Americans.²¹

The United States Congress leaned against any sort of involvement whatsoever with the Cambodian government. Prudential calculations about the domestic political climate supported this inclination; yet the horrors that subsequently engulfed Cambodia may call into question the morality of such a decision. Walzer's legalist paradigm has certainly not freed us from the painful dilemmas a world power encounters so frequently in international affairs.

HOFFMANN and Walzer's inability to refine our moral judgment to a point where we can confidently accuse our own statesmen of international immorality and castigate the United States for heinous crimes of aggression does not mean that we should abandon altogether our pursuit of moral conduct at the international level. American commitment to ethical standards is perhaps our greatest virtue. Walzer's legalist paradigm helps us order our intuitions and discipline our moral thinking. But the desire



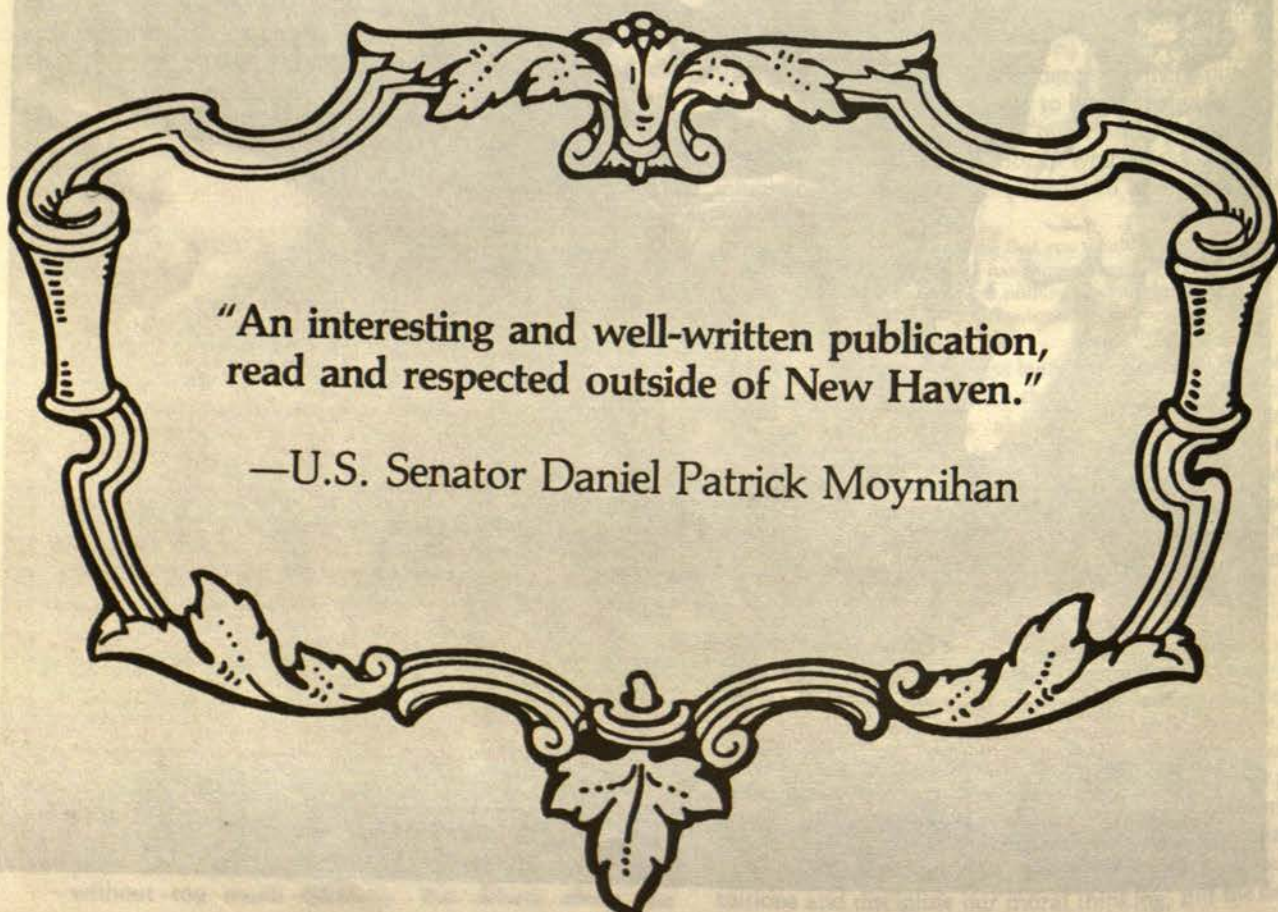
for definite ethical judgments can also easily lead us to oversimplify or make facile condemnations. Morality in international relations is necessarily complex and ambiguous. As a superpower with global responsibilities the United States will constantly have to confront moral dilemmas and make unappetizing choices. No set of guidelines can offer an easy formula for resolving our predicament. We would do well to accept that and heed Aristotle's advice in *The Nicomachean Ethics*:

It is a mark of the educated man and a proof of his culture that in every subject he looks for only as much precision as its nature permits.²²

NOTES

1. Stanley Hoffman, *Duties Beyond Borders* (Syracuse, New York: Syracuse University Press, 1981) p.189
2. J.E. Hare and Carey B. Joynt, *Ethics and International Affairs* (New York: St. Martin's Press, 1982) p.56
3. Hoffman, *Duties Beyond Borders*, p.50
4. Ibid., p.55
- 4a. Michael Walzer, *Just and Unjust Wars* (New York: Basic Books, 1977) p.59

5. Ibid., p.97
6. Ibid., p.101
7. Hoffman, *Duties Beyond Borders*, p.46-7
8. Ibid., p.71-2
9. Henry Kissinger, *White House Years* (Boston: Little, Brown & Co., 1979) p.457-8
10. William Shawcross, *Sideshow: Kissinger, Nixon and the Destruction of Cambodia* (New York, Pocket Books, 1979) p.126
11. Peter Rodman, "Sideswipe: Kissinger, Shawcross and the Responsibility for Cambodia," *The American Spectator*, Vol.14, No.3 (March 1981):12
12. Shawcross, *Sideshow*, p.113
13. Stanley Hoffman, "The Crime of Cambodia," *New York Review of Books* (June 28, 1979):3
14. Ibid., p.3-4
15. Kissinger, *White House Years*, p.250
16. Ibid., p.251
17. Ibid., p.459
18. Ibid., p.519
19. Rodman, "Sideswipe," p.15
20. Walzer, *Just And Unjust Wars*, p.59
21. Shawcross, *Sideshow*, p.362
22. *The Ethics of Aristotle*, translated by J.A.K. Thomson (Middesex, England: Penguin, 1955) Book I, Chapter 3, p.27



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The Fight for Orwell's Bones

Jacob Weisberg

GEORGE Orwell had a successful week toward the end of 1982. He made the covers of both the January *Harper's* and the Christmas/New Year issue of the *New Republic*. The two articles assessing Orwell's career could hardly have disagreed more. In *Harper's*, Norman Podhoretz argued that Orwell would be a neo-conservative had he survived. In the *New Republic*, Irving Howe indirectly made the counter claim that Orwell, a fervent socialist throughout his life, would have remained one. The contrasting views of Howe and Podhoretz epitomize an ongoing ideological battle for the politically valuable bones of George Orwell.

The fight is nothing new. Since Orwell published 1984 in 1949, almost every political faction (with the exception of the Communist left) has entered its claim. The dispute over the meaning of 1984 began while Orwell was still alive. The confusion it produced shocked and angered an author who had always placed the highest emphasis on clear and unambiguous writing. Orwell tried to clarify what he meant in 1949 and 1950 as he was dying. But it becomes obvious that this attempt failed when one sees the accumulated wealth of conflicting interpretations not only of 1984, but of everything Orwell ever wrote. There is less agreement about Orwell's politics now than ever before. The arrival of the year linked inseparably to his name has done anything but foster a consensus. Contentious Orwell literature is being churned out at an alarming rate for the current "celebration."

Before Orwell is canonized it may be useful to define the content of the current quarrel. The primary factions now claiming him, as Podhoretz's and Howe's articles indicate, are neoconservatives and socialists. Engaging in their usual polemics, the two sides argue as if they were fighting over the same person. But each sees its own Orwell; they admire totally opposite qualities in his writing. Neoconservatives, led by Podhoretz, claim Orwell for those facets of his politics that made him one of them. Socialists, on the other hand, deny that they even need to claim Orwell since he died a member of their fold.

NORMAN Podhoretz writes, "If Orwell were alive today, he would be taking his stand with the neoconservatives and against the left." He prefaces this argument with a comparison to Orwell's famous essay "Charles Dickens," where Orwell wrote that "Dickens is one of those writers who are well worth stealing." Podhoretz readily admits that Orwell has become another of those authors. But he does not apologize for playing the game of intellectual larceny which Orwell disdains in that essay.

Podhoretz bases his claim on an assertion that Orwell "underwent several major political transformations." In his youth, Orwell was, as he later called himself, a "Tory anarchist." By thirty, he was a socialist, and he kept that label until his death. But Podhoretz contends that during and after World War II Orwell gradually became less of a socialist and more of a patriot. (Podhoretz suggests that the two are contradictory, although Orwell did not.) In his two final novels, Orwell showed "little trace of the idea that a socialist revolution could be accomplished without a betrayal of the ideals of liberty and equality to whose full realization socialism was in theory committed."

That Orwell doubted and leaned towards repudiating socialism is as close to neoconservatism as Podhoretz can drag him. But Podhoretz and the American neoconservatives were as far from conservatism as Orwell was in 1949. Had his life not been cut short at 47, the argument continues, Orwell would have "lived to see the aims of what he meant by socialism realized to a very great extent under capitalism." He suggests that Orwell would have undergone the same conversion Podhoretz and many of his peers did, from some brand of socialism to what has come to be called neoconservatism.

Podhoretz then presumes to draw out Orwell's positions on a number of contemporary political issues by projecting things Orwell said in the 1930s and '40s into the '80s. These fall nicely into line with neoconservative opinion. For example, Podhoretz predicts Orwell's ideas about nuclear weapons. He points out that Orwell loathed pacifism and thought it helpful to totalitarianism. Although Orwell, according to Podhoretz, was thinking only of conventional pacifism, he would think the same way about "nuclear pacifism," and would therefore oppose both the nuclear freeze and a pledge of "no first use." To defend this proposition, Podhoretz

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calls up Orwell's phrase that pacifism "usually boils down to saying one side is as bad as the other," out of "hatred of Western democracy and admiration for totalitarianism." As might be imagined, this is a favorite quotation among Orwell's conservative admirers. However, it is only one side of what Orwell actually said about nuclear weapons. This is precisely how neoconservatives read Orwell, looking only to those texts that jibe with their point of view.

They also admire Orwell's long essay on socialism which comprises the second half of *The Road to Wigan Pier*. There, Orwell snidely mocked socialists as

That dreary tribe of high-minded women and sandal-wearers and bearded fruitjuice drinkers who come flocking towards the smell of 'progress' like bluebottles to a dead cat.

But only this second half of *The Road to Wigan Pier* is of use to the anti-socialists. The first half of Orwell's documentary, which describes poverty and class prejudice in the coal towns of Northern England, still belongs to the socialists.

Neoconservatives look to a number of other Orwell texts and phrases. Right-wing Orwell admirers remind us that, in 1984, "Ingsoc" is newspeak for English socialism. They also celebrate Orwell's prejudice against homosexuals, citing his characterization of Auden and the British poets of the 1930s as the "pansy left" or the "nancy poets." Podhoretz quotes a review of Cyril Connolly's *The Rock Pool* in which Orwell attacks "so-

called artists who spend on sodomy what they have gained by sponging." (The left, on the other hand, ignores prejudices of this sort. Critics like T.R. Fyvel in his *George Orwell: A Personal Memoir* go to extraordinary lengths to exonerate Orwell or gloss over what they consider a weakness.)

IT IS not surprising that left and right look to different texts. Podhoretz quotes Orwell when he professes patriotism and anti-Stalinism, or when he attacks the left-wing intelligentsia. These are the qualities he sees in Orwell. He emphasizes his baiting and sniping at 1930s and '40s leftist intellectuals. Podhoretz writes:

Wrong though he was about particular events, however, Orwell in every stage of his political development was almost always right about one thing: the character and quality of the left-wing literary intellectual . . . More than anything else, the ethos of the left-wing literary intelligentsia was his true subject . . .

He admires Orwell for criticizing fashionable ideas, and for pointing out foolishness on the left. He quotes *The Road to Wigan Pier*, in which Orwell took swipes at Marxists who spent their days writing 'proletarian' tracks entirely unintelligible to the working class. (Podhoretz seems less interested in Orwell's caustic wit when it is exercised against the right-wing intelligentsia.)



Another quality Podhoretz greatly admires in Orwell is his patriotism. He reveres the Orwell who coined the phrase "My Country Right or Left" during the Second World War. Podhoretz suggests that one of the "transformations" Orwell underwent was his emergence as a "whole-hearted patriot." He has little difficulty in making an American patriot out of Orwell the British patriot. He cites Orwell's essay "In Defense of Comrade Zillacus," which sounds very similar to Podhoretz's own writing:

To be anti-American nowadays is to shout with the mob . . . At any given moment there is always an orthodoxy, a parrot-cry which must be repeated, and in the more active section of the Left the orthodoxy of the moment is anti-Americanism.



Not only is this quotation patriotic and critical of the left, but it suggests what the right considers Orwell's great message: the supreme wickedness of Communist "orthodoxy."

This is most clearly noticeable in Podhoretz's mentions of *Animal Farm* and *1984*. He reads Orwell's novels as attacking British socialism, but sees *1984* as a condemnation of Stalinist totalitarianism to the exclusion of other forms of totalitarianism. To Podhoretz,

Orwell's loathing of Nazi Germany was mild by comparison with his feelings about the Soviet Union . . . he showed surprisingly little awareness of how evil Nazism actually was.

Yet the assumptions implicit in Orwell's weekly *Tribune* column "As I Please" written from 1943-45 contradict Podhoretz's claim that he "showed surprisingly little awareness of how evil Nazism actually was." Podhoretz sees the nightmare of *Animal Farm* and *1984* as emerging only from the totalitarian left, never from the totalitarian right. By reading selectively, he can make Orwell agree. When quoting Orwell's phrase that paci-

fism is "objectively pro-fascist," Podhoretz projects (and twists) that idea into the present by saying Orwell would now call pacifism "objectively pro-Soviet." Podhoretz is only concerned with Orwell the anti-Communist, not Orwell the anti-fascist. That is what he looks for when reading Orwell. Not surprisingly, that is what he finds.

TO his credit, Howe takes the question of what Orwell's politics would be less seriously. But his opinion on the subject, as it occurs in the context of an essay primarily about *1984*, is unmistakable. Howe's

attitude is typical of Orwell's socialist admirers. They do not feel they had to claim Orwell, as Podhoretz does. Socialists feel that since Orwell professed socialism throughout his career, he is eternally and immutably a socialist. Howe writes:

"Orwell understood, however, that democratic socialism is an effort to extend what is valid in the past, to enlarge our freedoms and deepen our culture."

Howe feels no need to extend Orwell into modern socialism—to him, Orwell's socialism still is what it was. Orwell's biographer Bernard Crick, who is also a socialist, sets the proposition the same way in his *George Orwell: A Life*: that there is no evidence that Orwell ever retreated from his socialist beliefs.

To support this, Howe uses his favorite Orwell quotations, just as Podhoretz did. He cites a letter the very ill Orwell sent to Francis A. Henson, an official of United Auto Workers. Henson wanted to recommend *1984* to his union, but was put off by friendly reviews in right-wing American magazines. The letter is worth quoting in full:

My recent novel is NOT intended as an attack on Socialism or on the British Labour Party (of which I am a supporter) but as a show-up of the perversions to which a centralized economy is liable and which have already been partly realised in Communism and Fascism. I do not believe that the kind of society I describe necessarily will arrive, but I believe (allowing of course for the fact that the book is a satire) that something resembling it could arrive. I believe also that totalitarian ideas have taken root in the minds of intellectuals everywhere, and I have tried to draw these ideas out to their logical consequences. The scene of the book is laid in Britain in order to emphasize that the English-speaking races are not innately better than anyone else and that totalitarianism, if not fought against, could triumph anywhere.

Howe's quotation of this letter noticeably breaks off after "something resembling it could arrive." The left intelligentsia of the 1980s may still be too uncomfortable with Orwell's phrase "I believe also that totalitarian ideas have taken root in the minds of intellectuals everywhere."

The differences between Howe and Podhoretz do not boil down to which texts they prefer. Howe may settle for *The Road to Wigan Pier* part one, and Podhoretz for part two, but neither will yield 1984 or *Animal Farm*. Both right and left cite them endlessly. To Howe, the novels satirize (as Orwell's letter indicated) Soviet Communism and fascism. He says Orwell conjures up the "worst moments of Stalinism and Hitlerism." Howe admits, as does Podhoretz, that Orwell was a kind of patriot, but calls his feeling "conservative sentiments" which "not only aren't in conflict with his socialist opinions, they can be seen as sustaining them." He certainly does not praise Orwell's caricatures of the left literary intelligentsia. He feels safest admiring Orwell's socialism, which is no different from legitimizing his own. Orwell is a kind of mirror in which socialists see their own political opinions reflected back with a new glimmer.

It would be unfair to call Howe guilty of the worst excesses of this self-justification. He has a subtle understanding of the complexities of Orwell's writing, and is not afraid to admit, from a literary viewpoint, that 1984 can be read as an attack on socialism. Crick would be unlikely to admit this. Neither would any of the more orthodox socialists who rushed to Orwell's "defense" when Podhoretz tried to snatch him away last year.

one. Hitchens insults Podhoretz further before snatching Orwell back: "I wish Orwell were alive today. The democratic socialist camp needs him more than ever." Podhoretz, in his reply, insults Hitchens and returns the accusation of attempted theft. Thus Orwell's legacy deteriorates into ideological squabble.

Slightly more witty was John Garvey's response in *Commonweal* to Podhoretz's article. Garvey imagines a conversation with a resurrected Orwell, who makes Podhoretz out to be a Catholic pacifist on the basis of selective quotation. But beneath the humor, Garvey's attitude is the same as Hitchens'. Orwell has become an intellectual commodity. Those who claim to be upholders of his true flame feel the need to maintain Orwell's legacy.

Left and right both see different Orwells because both see their own beliefs reflected in his writing. But why are both sides swapping such vicious insults over an author dead 34 years? It is difficult to explain why Orwell is so badly wanted. An easy answer is that he is important because of his enormous reputation. Howe compares him to Hazlitt and Dr. Johnson. Crick sets him alongside Hobbes and Swift. Podhoretz draws the line at Burke and Mill. But Orwell's inflated reputation does not explain the intensity of the fight to claim him. The pages of *Harper's* rarely tout ideological warfare about the true politics of Swift and Hazlitt.

Contemporary intellectuals respect Orwell for intellectual honesty and decency, so rare in the decades when he wrote. It is hard to think of anyone of his stature who did not compromise his beliefs in the 1930s and '40s. All who praise Orwell call him clear, honest, and decent. This is no small reputation to maintain for an entire career spent in the heat of the fray.

Orwell expressed a sense of decency throughout his life and work. In *The Road to Wigan Pier* he wrote:

It seemed to me then—it sometimes seems to me now, for that matter—that economic injustice will stop the moment we want it to stop, and no sooner, and if we genuinely want it to stop the method adopted hardly matters.

This was Orwell's great faith in the power of human decency. He argued that the poor and downtrodden would learn to live respectably as soon as economic and social conditions allowed. In "Charles Dickens" he commented: "Dickens . . . had the vision to see that . . . 'if men would behave decently the world be decent' is not a platitude as it sounds." On this basis, Orwell defended Dickens from the charge of political insensitivity. Only a true master can defend that proposition without sounding silly. Dickens, said Orwell, was such a master. Orwell was another.

BUT Orwell's actual stature cannot match the desire on all sides to possess him. Orwell is often used as evidence. Many political writers cite Orwell to accentuate their own ideas, praising and pointing out their own beliefs in his writing. When serious writers engage in this, the habit begins to feed upon itself. If Podhoretz and Howe both say Orwell is important, other intellectuals will agree and claim him themselves.

THE socialist left was indeed outraged at the Podhoretz article. Their attitude was that of people who have been robbed: "how dare he steal our Orwell?" Christopher Hitchens responded with a virulent letter to *Harper's*, accusing Podhoretz of misquoting and misunderstanding Orwell as well as hurling "grave insults" at the great man. According to Hitchens, "Podhoretz, in fact, only really likes Orwell for his flaws, and cannot read him or discuss him as a whole." These "flaws" Podhoretz likes can only be anti-Communism and opposition to intellectuals. Hitchens thinks that one "grave insult" is calling Orwell a "wholehearted patriot." Patriotism and socialism cannot coexist in his narrow view as they could in Orwell's broad

Both Podhoretz and Howe succumb to the temptation to use the phrase "Orwell understood —." According to Howe, "Orwell understood that democratic socialism is an effort to extend what is valid in the past, to enlarge our freedoms and to deepen our culture." According to Podhoretz, he "understood, after all, that 'Despotic governments can stand 'moral force' till the cows come home; what they fear is physical force.'" Orwell understood both of these things in the sense that he thought them true. But that is not what Howe and Podhoretz mean. When they say "Orwell understood —," what they actually mean is, "I think this, so did Orwell." What the authors engage in, although each would deny it, is justifying and supporting their own political opinions on the basis of what Orwell wrote. This helps Podhoretz and Howe but adds nothing to our understanding of Orwell.

It should not seem shocking that intellectuals can draw such contrasting conclusions from Orwell. Orwell wrote a great deal and contradicted himself more than a few times. For those seeking justifications for their own views, his writings are a grab bag. Like Podhoretz, Orwell hated Stalinism and the left literary intelligentsia, and loved his country. Like Howe, he was a socialist and an anti-fascist. Orwell was not afraid to criticize his peers on all sides; for him these propositions were in no way contradictory. But in the hands of those who fundamentally disagree, Orwell sounds more confused than he ever was.

Hitchens claims Podhoretz misuses Orwell. That really is not the problem. Podhoretz reads Orwell selectively, but no more than do most others. What makes their readings differ so markedly is that ultimately Podhoretz is reading Orwell for Podhoretz, and Howe is reading him for Howe. No one seems to be reading to learn anything from Orwell. He himself never accepted ideologically committed writing of this kind. In his essay "Writers and Leviathan," he wrote of the political writer that,

his writings insofar as they have any value will always be the product of the saner self that stands aside; records the things that are done and admits their necessity, but refused to be deceived as to their true nature.

Howe, Crick, Podhoretz, and Hitchens all deceive themselves to some degree about Orwell's true nature. This is the inevitable result of reading Orwell with a preconceived bias.

1984 is another good year to read and learn from Orwell. Learning from him involves escaping the wealth of ideological criticism and Orwell hysteria. If Orwell's publisher Frederic Warburg had agreed to call his novel *The Last Man in Europe*, as Orwell wished, people might be paying the author no special attention. 1984 had very little to do with 1984 in Orwell's mind. It would be a shame not to celebrate Orwell's life and work this year with everybody else. But we should remember to honor Orwell in a spirit of inquiry rather than one of ideology.



Do We Need an Industrial Policy?

John Rowley

INDUSTRIAL policy is a catchword for programs designed to influence business in areas where proponents feel the "invisible hand" of Adam Smith is not doing the job. In practice, much of what falls under the heading of industrial policy promises to be about as effective as another catchword that was making headlines about this time four years ago—supply-side economics.

As we approach the presidential election of 1984 there is increasing talk of instituting programs designed to change the fundamental posture that our nation has taken towards the economy. There is a growing feeling that we are losing out to Japan and Western European nations and that our undisputed leadership in the world economy is no longer undisputed. Many feel that our problem is somehow rooted in the fact that, unlike many of our competitors, we lack programs to aid our domestic industry.

The remedy called for, a new industrial policy, has been referred to as 'Democratic supply-side economics.' Thus Walter Mondale wants a new cooperation between business, government, and labor to "restructure whole industries." Senator Alan Cranston supports a government development bank which would give loans to basic industries like steel. Senator Gary Hart favors tax credits to help companies retrain workers. Felix Rohatyn, an influential Wall Street investment banker, proposes a new Reconstruction Finance Corporation. Harvard's Robert Reich, author of the leading book on industrial policy, *The Next American Frontier*, and M.I.T. economist Lester Thurow are also actively involved in the debate. Thurow feels that the success of the Japanese is largely a result of their industrial policy organ known as the Ministry of International Trade and Industry (MITI).

Industrial policy can be divided into two broad categories. The first, which would be beneficial to our economy, consists of changes in the tax code and regulations that would provide incentives for companies to engage in joint research and development (R&D), invest in growth industries, retrain workers, and reduce unemployment. The second type, which save for a few exceptions would be wasteful, harmful, and in some cases even dangerous, consists of changes designed to

coerce and target industries with direct subsidies through a central planned government agency.

In the view of most, our economy is more robust now than it has been in a long time. There is some concern, however, for the longer term. From 1973 to 1981 the U.S. growth rate of productivity in manufacturing was a mere 1.7 percent. The Japanese growth rate was 6.8 percent. Our average unemployment rate for the same period was 6.9 percent. Japan's was 2 percent. The Japanese and European invasion of our domestic car market is one sign that something might be wrong. Another is Japanese success in specialty steel and semi-conductors. Other disturbing signs include our tremendous budget deficits, interest rates that are still very high by historical standards, an unacceptably high level of unemployment, and a growing feeling that our economy no longer produces goods of the highest quality.

OVER the past half century a patchwork of new programs has been imposed upon the economic framework, but we must make our policies more consistent, comprehensive, and socially beneficial. We should focus on private research and development, finance, unemployment, policy coordination, export incentives, and macroeconomic policies. There is a need to create incentives so that private industry will engage in more R&D, which in turn will create new products, jobs, and growth for the economy. Such incentives would be most effectively generated through tax deductions or credits for incremental increases in R&D by private companies. Fears of anti-trust violations must be removed to allow companies to engage in more joint research (many business executives would like to do this but current anti-trust laws are too strict).

Another essential element for continued growth of the economy is the increased involvement of private financial institutions. Congress should repeal part, if not all, of the Glass-Steagall Act in order to allow and encourage increased involvement of banks and investment banks in growth sectors of the economy. This change would have the same effect as the Japanese practice of creating beneficiary certificates which provide special tax treatment on loans to designated sectors of the economy.

In his book, Reich suggests the creation of unemployment vouchers to provide incentives for growth industries to locate in areas of high unemployment and to

hire and retrain the unemployed. The government would provide a voucher to all persons unemployed for a given period, say six months, and when the individual was rehired, the voucher would be turned over to his employer to be redeemed for a government subsidy or a lower tax rate, depending on the number of voucher holders employed. The lower tax rate would provide incentives for the company to invest more heavily in retraining unemployed workers and to locate in an area of high unemployment. Both company and region would benefit.

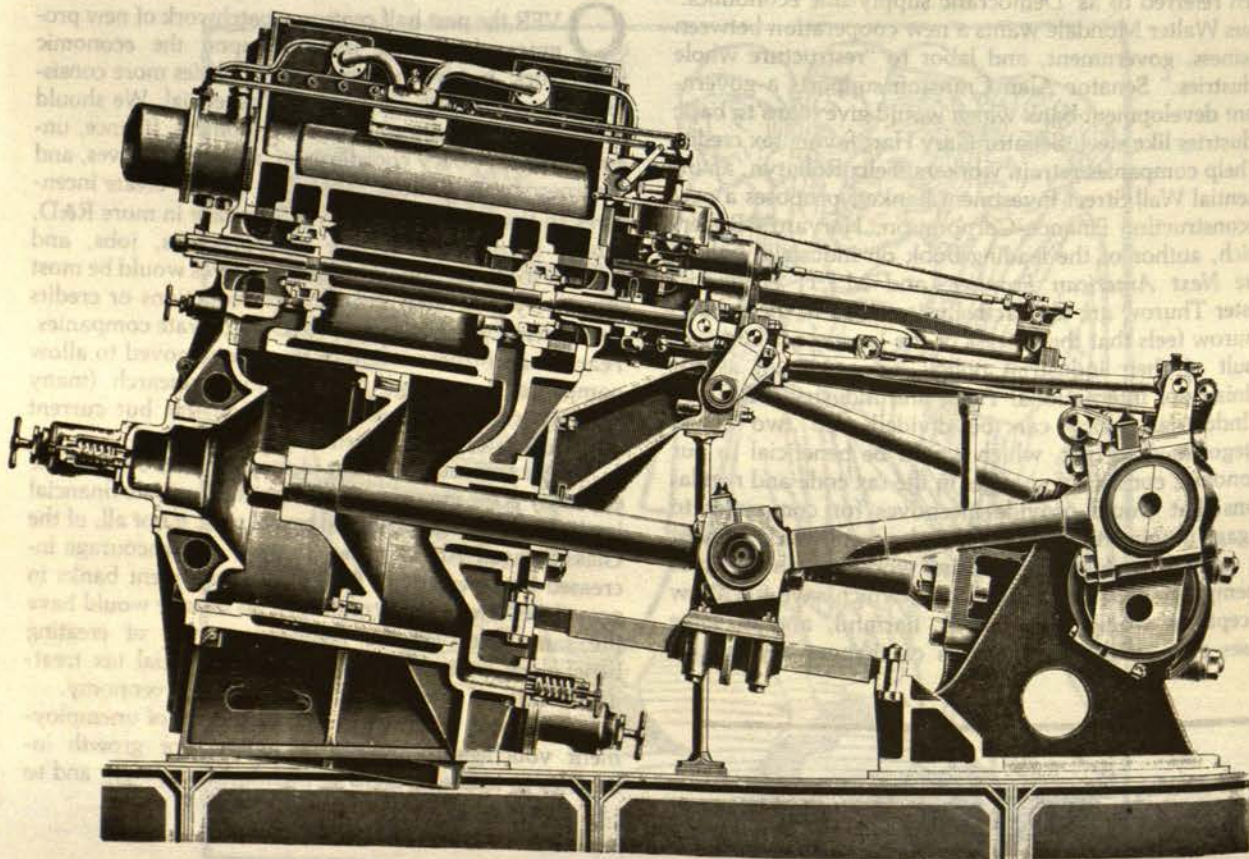
Another idea is to make business payroll contributions dependent upon employment history. Companies which have a history of laying off too many workers too soon would have to pay more. In Japan there is a more cooperative spirit between labor and management; while it may not be possible to import Japanese culture into the United States, a move to make disincentives for socially undesirable business behavior would be a step in the right direction. Further, there should be a three-month notification period by companies before they can lay off workers. Companies should also be required to notify the government of all job openings. Computerized records of all openings could be maintained by the government, as they are in Sweden.

In addition it might be necessary to form a council to decide the criteria for preferential tax treatment: should benefits apply to business through a performance measure or to certain designated high growth industries that should be specifically nurtured for the long term health of

the nation? The council must be responsible for gathering and analyzing data on industries and the economy in general.

There should be additional help and incentives for firms opening foreign markets. The U.S. should provide beneficial tax treatment to revenues on products produced in the United States but exported abroad. The Export-Import Bank is not enough. However, taxes must be raised on products from countries which have barriers which make for unit cost disadvantages of U.S. products. An automatically adjusting tax would provide an incentive for foreign countries to lower their tariffs and correct cost differences of final products due to differences in taxes. Economically speaking, ignoring political considerations, it would be best if we eliminated all tariffs, quotas, and voluntary restrictions. To do so, however might require a fundamental restructuring of the way lobbies gain access to political power.

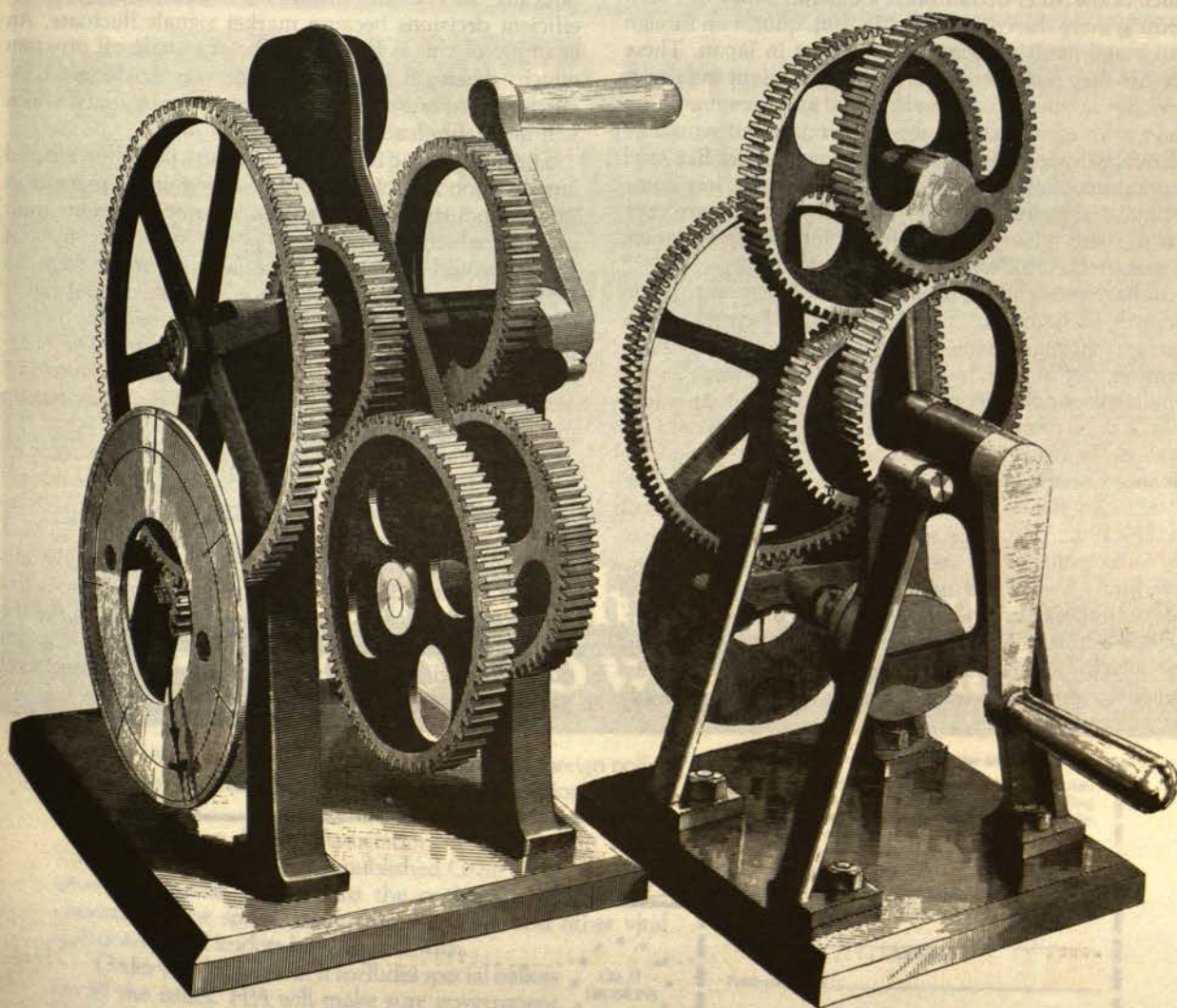
CHANGES have to be made in the realm of macroeconomic policies as well. The tremendous budget deficits which now exist must be cut. There can be little doubt that the increase in government borrowing (federal, state, and local) from about 10 percent of all funds raised in U.S. securities markets in 1973 to about 60 percent today has been a major culprit in interest rates that are too high by both real and historical standards. Deficit cuts in turn would help correct the present over-



valuation of the dollar in foreign exchange and reduce our record balance of payments deficit. Our products will again become internationally competitive. Currently, for the American holding dollars, foreign goods are cheap, but to the foreigner American products are much too expensive. As a result, purchases of American goods drop. The only solution is a reduction of government budget deficits. The Republicans have not been able to do this and the Democrats do not want to. Although some economists and the Secretary of the Treasury would like to believe the government deficits have no effect on interest rates there is little doubt that the rise in government borrowing is largely responsible for the rise in U.S. interest rates. Martin Feldstein, current Chairman of the Council of Economic Advisors, is a leading advocate of this viewpoint.

A decentralized framework of incentives would have many advantages over centralized coercive policies currently being called for from some corners. It must be kept in mind that bureaucracy is not a source of prosperity, and that the intervention of government in finance, bailouts, and R&D is undesirable.

Proponents of industrial policy have pointed to the Japanese experience as an example of how industrial policy can be successfully implemented. However, their industrial policy has not been as stellar as proponents of MITI-like policies would have us believe. MITI (Ministry of International Trade and Industry) is responsible for providing seed capital for new and growing industries and managing the decline of those which have lost their competitive edge. Yet in a recent article in the *New York Times*, Tomihiko Masumara, director responsible for semiconductor operations at NEC—Japan's largest semiconductor maker—argued that MITI was not responsible for NEC's success in present generation 64K RAM chips: "We would not trust MITI entirely, and frankly, the in-house work was more important to us than the MITI project." Japanese executives have said that MITI has helped somewhat with developing fundamental technologies, but that many changes in basic design were necessary for mass-production—and it is in mass-production, not technology, where the Japanese have the advantage. The Japanese also have an advantage in more efficient plants, better process systems, cost-cutting, and quality control.



But these benefits are the result of individual companies in private industry, not MITI.

JAPAN'S recent success in many world markets is a result of superior management techniques, lower labor costs, lower corporate tax rates, quotas, and a mercantilist governmental economic posture. U.S. automobile workers are paid substantially more than their Japanese counterparts and labor costs make up a large percentage of a car's total cost. The culture and management techniques of Japan bring all workers of a company together for their mutual benefit. Management makes union members feel like the important part that they are in the success of the company. In Japan it is a rarity to see a union out on strike. Further, the Japanese are better at keeping production costs down. Their Kanban inventory method, for example, keeps a costly raw materials inventory near zero without interrupting production. As for quality control, U.S. manufacturing has stressed massive checks for defective goods rather than focussing on the production process to insure top quality goods the first time around, as the Japanese have done.

Although MITI has organized joint research projects, much of the MITI-orchestrated industrial policy has been nothing more than pure protectionism: quotas on foreign goods and limits on foreign investment in Japan. These policies may have been appropriate for infant industries after the devastation of World War II and for some of the fast-growing industries in the U.S. today, but would be economically insane for mature U.S. industries like steel and automobiles, which would only become less competitive and more inefficient than they already are. Yet it is precisely protectionism that unions and companies in mature U.S. industries are lobbying for.

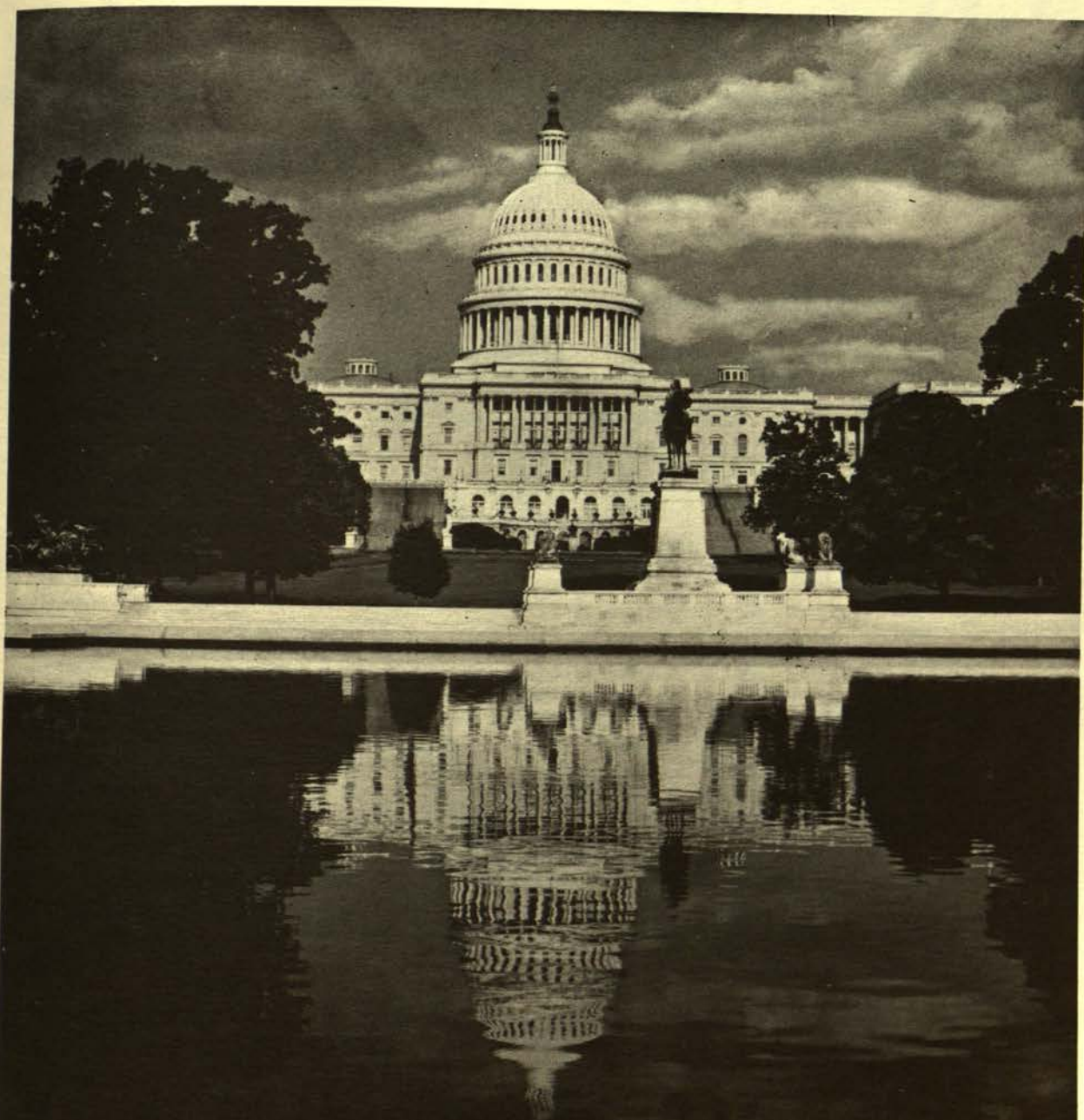
Rohatyn recently proposed a new Reconstruction Finance Corporation modeled on the Depression-era agency that made loans to industry to help finance expansion. Yet in practice the RFC became known as the "millionaires dole" because it was little more than a lobbyist's door prize for large and politically-powerful industries. Thurow has called for a government "Corporate Finance Committee" that would in effect make the federal government the largest underwriter and venture capitalist in the nation. Both these ideas would become a grab bag for large, politically-powerful industries once more, and few funds would end up being allocated to the small politically-weak growth sectors of our economy. Further, such investment decisions would require financial expertise which the government does not possess; losses sustained by poor investments would worsen the already large fiscal problem.

Reich argues that critics of industrial policy are missing the fundamental point—that the U.S. already has an industrial policy but one that lacks unity and favors certain industries, such as aerospace. But Reich misses a more fundamental point: where we are losing our edge is in manufacturing and production, not technology. Could a U.S. MITI help American problems in manufacturing and production? No. The problems that the U.S. economy faces cannot be solved by yet another government agency. Further, R&D as a percentage of GNP is already 3 times greater in the U.S. than it is in Japan. It is well known that government R&D is useless in creating marketable products and is helpful with little more than basic technology. There, however, we are already number one.

WE must not lose our freedom to a body which is not democratically accountable, that is coercive, or one that business would become dependent on. Economically, such a body would make many wrong and inefficient decisions because market signals fluctuate. An example of this is President Carter's shale oil program which, when oil prices dropped, was no longer cost-efficient. We must also avoid corporate bailouts, which will inevitably lead to "lemon socialism."

The Democratic initiative for industrial policy is based largely upon loss of jobs and resulting union pressure in 'sunset' industries like steel and automobiles. One must question whether an industrial policy formulated by such groups would not in fact become a plum for them. In Japan, such industries would not be given aid but rather would be further mothballed. In many other countries industrial policies have been miserable failures. The fledgling steel industries of Western Europe have received vast aid from their governments, yet to this day they remain inefficient and uncompetitive.

What we need as a nation are programs that are market-consistent. A monumental crisis simply does not exist now. The U.S. balance of payments in high tech industries has doubled since 1977 and is growing. We have a highly competitive service sector and since 1978 our portion of the world market of manufactured goods has risen to 21.5 percent, reversing a trend existing since the 1950s. Creating decentralized, market-consistent industrial policies is what we need to insure the long term predominance of our economy.



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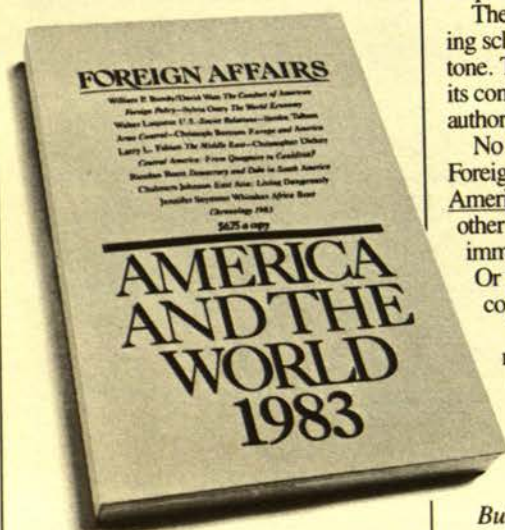
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